RALPH VUMINDABA NKOMO
versus
THE SHERIFF OF ZIMBABWE
and
NYASHA PHYLLIS DZANGAI
and
PERRIS SIBANDA
and
REGISTRAR OF DEEDS N.O.

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 28 November 2025 and 2 February 2026.

Opposed application.

W. Musengwa for the Applicant.
Z.W. Makwanya for the 2nd Respondent.
F. Chinwawadzimba for the 3rd Respondent.
No appearance for the 1st and 4th Respondents.

DEME J: The Applicant approached this court seeking an order for the declarator and consequential relief in terms of Section 14 of the High Court Act [*Chapter 7:14*]. In this connection, the Applicant is praying for the nullification of the agreement of sale. More particularly, the Applicant sought the following relief:

> "1. The application for a declaratory order and consequential relief be and is hereby granted.
>
> 2. The agreement of sale in respect of a certain piece of land situate in the district of Salisbury, called Stand 2488, Glen Lorne Township of Lot 39A Glen Lorne measuring 3.27223 hectares, registered under Deed of Transfer No. 12634/2002 ("the property") executed by the 1st and 2nd Respondents, be and is hereby declared null and void and of no force and effect.
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> 3. In the event that transfer of the property has already passed to the 2nd Respondent, the 4th Respondent be and is hereby directed to reinstate Deed of Transfer No. 12634/2002.
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> 4. The 1st and 2nd Respondent (sic) shall bear the costs of the suit."

The Applicant and the 3rd Respondent were legally married. The marriage was dissolved by this court on 26 April 2024 in case number HCH2436/23. In terms of the divorce decree, the property called a certain piece of land situate in the district of Salisbury, called Stand 2488, Glen Lorne Township of Lot 39A Glen Lorne, measuring 3.27223 hectares, registered under Deed of Transfer No. 12634/2002 (hereinafter called "the property") was equally apportioned between the Applicant and the 3rd Respondent. The Applicant had the option of buying out the 3rd Respondent, subject to the valuation of the property. The Applicant was given a period of six months within which to exercise this option, failing which the property would be sold to the best advantage which would see the parties equally sharing the proceeds arising therefrom.

The Applicant failed to exercise a buy-out option. The 3rd Respondent approached this court in case number HCHF1149/25 seeking relief from this court. On 25 April 2025, the court in case number HCHF1149/25 ordered that:

> "1. Application is granted.
>
> 2. Certain piece of land situate in the District of Salisbury called Stand 2488 Glen Lorne Township of the Lot 39A Glen Lorne measuring 3,2723 hectares also known as 2488 Highland Glen Road be advertised and sold to the highest offeror within 30 (thirty) days inclusive of weekends and public holidays from the date of this Order provided that the minimum purchase price shall be the sum of US$500 000.
>
> 3. The 1st respondent shall sign the agreement of sale within 7 (seven) days failing which the 3rd respondent or his deputy shall sign the agreement of sale and all other necessary documents to effect transfer of the property to the highest offeror.
>
> 4. The 1st respondent shall pay the applicant's costs of suit on the legal practitioner and client scale."

The 1st and 2nd Respondents concluded an agreement of sale in respect of the property. The purchase price for the property was US$512 000. Upon signing the agreement, the 2nd Respondent was obliged to pay the sum of US$250 000 with the balance being payable on 23 May 2025 in terms of the agreement. The 2nd Respondent paid the deposit of US$250 000 on 27 May 2025.

The Applicant alleged that the agreement was irregularly concluded as it appears to have been signed by the 2nd Respondent on 7 April 2025 prior to the court order of 25 April 2025 while the 1st Respondent signed on 21 May 2025. It was averred by the Applicant that the sale must be invalidated on this basis. The Applicant affirmed that the court order of 25 April 2025 does not have a retrospective effect.

The Applicant claimed that the 1st Respondent neglected her duty by failing to ensure that the 2nd Respondent complied with the agreement through the payment of the balance by the date specified in the agreement of 23 May 2025. Aggrieved by the alleged breach, on 17 June 2025, the Applicant's legal practitioners wrote to the 1st, 2nd and 3rd Respondents registering the Applicant's displeasure. The contents of the letter of 17 June 2025 are as follows:

> "RE: AGREEMENT OF SALE DATED 7TH APRIL 2025: RALPH VUMINDABA NKOMO (REPRESENTED BY THE SHERIFF OF THE HIGH COURT) AS SELLER AND NYASHA PHYLLIS DZANGAI AS PURCHASER IN RESPECT OF A CERTAIN PIECE OF LAND SITUATE IN THE DISTRICT OF SALISBURY CALLED STAND 2488 GLEN LORNE TOWNSHIP OF LOT 39A GLEN LORNE MEASURING 3, 2723 HECTARES (IMPROVEMENTS: 4 BEDROOMS, LOUNGE, KITCHEN. TOILET/BATHROOM, OUTBUILDINGS, FENCED AND GATED (the "PROPERTY")
>
> 1. We refer to the above matter in which we act on behalf of Ralph Vumindaba Nkomo our client. We further refer to the agreement of sale dated 7th April 2025/21 May 2025 (respectively) signed by the Sheriff on behalf of our client in terms of which the Sheriff sold our client's property to Nyasha Phyllis Dzangai (the "Agreement").
> 2. The material terms of the Agreement are as follows, viz:
>   a. That the property is disposed of for the sum of US$512 000.00;
>   b. That the sum of US$250 000.00 would be paid on signing into the trust account of Mudimu Law Chambers, and;
>   c. The balance of US$262 000.00 would be paid on or before the 23rd of May 2025.
> 3. We are advised that the purchaser paid a deposit in the sum of US$250 000.00 on signing. However, in breach of the agreement, we are advised that the Purchaser failed to settle the balance of USD$262 000.00 by the due date.
> 4. Considering the above, our client has instructed us to demand termination of the agreement as judicial sales and agreements executed by the Sheriff must be strictly adhered to especially in cases under which the Sheriff performs a fiduciary role of executing an agreement on behalf of a judgment debtor or a third party in the case of our client.
> 5. In light of the agreement, our client hereby "terminates the agreement" and brings to your attention the fact that same has become null and void by operation of law. We advise that we are instructed to demand that the Agreement be terminated forthwith failing which our instructions are to seek the court's intervention on an urgent basis.
> 6. We are further advised by our client of the misrepresentation communicated to it that the payment was due on the 13th of June 2025 contrary to what is contained in the written Agreement. Surprisingly, even the unilateral extension of the due date has not been complied with.
> 7. We look forward to your immediate termination of the Agreement and refund of the deposit to the Purchaser. We advise that our client has the full sum available to settle immediately. Should you want, the same amount can be deposited with Mudimu Law Chambers at your simple call. We hereby tender US$260 000.00 which we hold in trust on behalf of our client which can be used to settle the half share due to our client's former spouse.
> 8. We wait to hear from you within the next twenty-four (24) hours and look forward to your immediate cooperation.

We now await to hear from you."

The 2nd Respondent's legal practitioners replied to the Applicant's letter of 17 June 2025. In their response, they brought clause 10 of the agreement to the attention of the Applicant's legal practitioners, which obliged the Applicant to give notice before proceeding to terminate the agreement. The contents of the letter are as follows:

1. "We write on behalf of Nyasha Phyllis Dzangai our client, please note our interest.
2. We are instructed with your letter dated 17 June 2025 addressed to Mudimu Law Chambers copied to the Sheriff of the High Court of Zimbabwe and to DHLAKAMA B. ATTORNEYS, with regards to the above-mentioned subject. We are instructed to respond as follows:
   2.1. Firstly, your client cannot "terminate the agreement" as he has tried to demonstrate in your letter dated 17 June 2025. We would like to bring your attention to clause 10.1 of the Agreement of sale which says that "should either party (the defaulting party) commit a breach of any of the provisions hereof then the other party (the aggrieved party) shall, if he wishes to enforce his rights hereunder, be obliged to give the defaulting party seven (7) days written notice to remedy the breach". In this case the agreement is clear that any termination arising from breach can only be legally enforceable only if the aggrieved party has given seven (7) days written notice to the defaulting party to remedy the breach. The termination as a result of breach can only be enforced in terms of clause 10.2 of the Agreement of Sale which states that "if the defaulting party fails to comply with such notice, the aggrieved party shall be entitled to cancel this Agreement against the defaulting party of all of the defaulting party's obligations whether or not the due date for payment and/or performance shall have arrived, in either event without prejudice to such other rights or remedies the aggrieved party may have at law or in terms of this Agreement".
   2.2. In this case should your client have felt that our client had committed a breach, your client should have complied with clause 10.1 of the Agreement and should have given notice in writing to our client. The use of the words shall in clause 10.1 of course makes it peremptory that the notice is a pre-requisite before cancellation is effected. Our client is yet to receive notice of breach, that is if there is any, from your client.
   2.3. Notwithstanding the above, our client as far long back as 13 June 2025, she wrote an email to the conveyancers tendering the balance and confirming its availability. However, our client raised her concerns that no progress had been made in as far as transfer process is concerned and ZIMRA process had not been initiated as stipulated in the Agreement of Sale. Again, during this period our client had not been put in mora by yours as required by clause 10.1 of the agreement, nonetheless.
   2.4. Apart from the fact that no progress with regards to transfer process had been made our client nonetheless made arrangements that the same people who were responsible for collection of the initial deposit avail themselves at NMB Bank at 3pm on 19 June to receive the balance in question. This amount to breach of the agreement as your client's conduct amounts to frustration of the execution of our client's obligation without a legal basis. In light of this, our client has instructed us to give your client notice through you, in terms of clause 10.1 of the Agreement of Sale, as we hereby do, to allow our client to perform its payment obligations within seven (7) days from the date of service of this letter and failing which your client would have breached the agreement and our client shall take legal recourse.

> We hope that with your guidance and advice to your client, your client will allow the smooth conclusion of this transaction."

The Applicant asserted that his interest in the matter arises from his ownership of the property in dispute. The Applicant motivated the court to nullify the agreement based on the irregularities highlighted.

The matter was opposed by the 2nd and 3rd Respondents who raised a point *in limine* that the Applicant ought to have given notice for breach before approaching the court. The 3rd Respondent raised a further point *in limine* to the effect that the new evidence incorporated in the answering affidavit ought to be expunged from the record.

On the merits, the 3rd Respondent averred that the Applicant is not entitled to the relief sought. According to the 3rd Respondent, the Applicant failed to sign the agreement in terms of the order in case number HCHF1149/25 which saw the 1st Respondent signing the agreement on behalf of the Applicant on 21 May 2025. The 3rd Respondent averred that the 2nd Respondent signed the agreement on 7 May 2025 and not on 7 April 2025. The 3rd Respondent also maintained that the 2nd Respondent offered to purchase the property on 6 May 2025. It was averred that the date of 7 April 2025 was erroneously inserted in the agreement. Reference was made to the affidavit authored by the 1st Respondent's representative.

The 3rd Respondent further insisted that the issue of the date was never raised as an issue before. She also asserted that the 2nd Respondent paid the deposit on 27 May 2025 and was prepared to pay the balance on 18 June 2025 had it not been for the acts of the Applicant who rejected the payment.

On the merits, the 2nd Respondent averred that she signed the agreement on 7 May 2025 and not 7 April 2025. She also affirmed that the Applicant was served with his offer to purchase the property on 6 May 2025. According to the 2nd Respondent, the conveyancers were advised that the balance of the purchase price was payable two weeks after payment of the deposit. The 2nd Respondent additionally claimed that there was an understanding for the deferred payment of the remaining purchase price. Reference was made to annexure G of the 2nd Respondent's opposing affidavit.

In the answering affidavit, the Applicant argued that there is no evidence that the property was advertised pursuant to the court order in case number HCHF1149/25. The Applicant also

averred that there is no proof that the property was sold to the highest bidder. These issues generated the 3rd Respondent's point *in limine* highlighted before. The 3rd Respondent averred that these two issues are new issues which were never raised in the founding affidavit. Mr. Musengwa admitted that the issues of advertisement of the property and whether the property was sold to the highest bidder were new issues which were never raised before. On this basis, Mr. Musengwa and Ms Chinwawadzimba reached an agreement that paragraphs 13, 14, 46, 58 and 59 of the answering affidavit be expunged. On this basis, I will not relate to the issues raised by the expunged paragraphs.

This leaves me with one point *in limine* raised by the 2nd and 3rd Respondents. The 2nd and 3rd Respondents argued that the Applicant ought to have proceeded in terms of clause 10 of the agreement before approaching the court. It is apparent that clause 10 provides for the manner in which breach of the agreement may be dealt with. The present application is application for a declarator where the Applicant is seeking an order that the agreement be nullified on the basis that, among other things, the agreement was concluded prior to the court order in case number HCHF1149/25.

I find it inappropriate to make a determination on this point *in limine*, before the merits, where the agreement is being impugned. I cannot make a determination on this aspect before determining whether the agreement is valid. For this reason, this point *in limine* is hereby deferred to the merits of the Applicant.

On the merits, there are two issues that need to be resolved by this court. These include the following:

A. Whether the agreement is valid.

B. Whether the application for a declarator is merited.

In terms of paragraph 2, it is apparent that the effective date of sale is the date where both parties sign the agreement. Clause 2 of the agreement provides as follows:

> "This agreement shall commence on the date of signature by both parties (hereinafter referred to as "**the effective date")** and shall subsist and continue to be binding between the two parties."

The 1st Respondent signed the agreement on 21 May 2025. The argument for the invalidation of the agreement is ignoring this critical clause in the agreement. Prior to 21 May 2025, there was no agreement.

Further, it is apparent that the Applicant and his legal practitioners created an impression that he was not disowning the agreement. The Applicant is not disputing having been served with an offer on 6 May 2025. The Applicant's legal practitioners accepted the deposit of the purchase price on 27 May 2025. The Applicant is bound by the acts of his agent. The contents of the letter of 17 June 2025 suggest that the agreement was valid. The Applicant's legal practitioners never raised the issue of the date as the basis for the setting aside of the agreement although the letter recognizes that the agreement is dated 7 April 2025. In the letter of 17 June 2025, the Applicant was complaining of the breach. The issue of the date was not raised in this letter. The issue of the date could have come as an afterthought after the Applicant's legal practitioners received the response from the 2nd Respondent's where clause 10 of the agreement was brought to the attention of the Applicant. Mr. Musengwa was not able to explain why the issue was not incorporated in the letter of 17 June 2025. On this basis, I find it unmerited for the Applicant to seek a declarator in this regard where the Applicant religiously sought the fulfillment of the agreement.

Further, several paragraphs in the founding affidavit raise the issue of breach of the agreement. This is consistent with the letter of 17 June 2025. I do agree with Mr. Makwanya's submissions that breach can only arise where there is a valid agreement. On this basis, I am of the view that it is improper for the Applicant to proceed to seek a declarator for the nullification where the surrounding circumstances suggest that the Applicant behaved himself as if there was a valid agreement. On this basis, I am of the view that the Applicant cannot approach the court seeking the remedy arising from Section 14 of the High Court Act [*Chapter 7:06*] which provides that:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

The present application does not meet the essential requirements for application for a declarator. Reference is made to the case of *Johnson* v *Afc*[1], where Gubbay CJ commented as follows:

> "The condition precedent to the grant of a declaratory order under s 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an "interested person", in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto… At the second stage of the enquiry, the court is obliged to decide whether the case before it is a proper one for the exercise of its discretion under s 14 of the Act. It must take account of all the circumstances of the matter."

The present application fails at the second stage of the inquiry outlined in the case of *Johnson v AFC supra.* Although it is common cause that the Applicant is a registered owner of the property which gives rise to satisfaction of the first requirement established in *Johnson supra*, the application must fail on the basis that there is a valid agreement which has not been set aside. Where there is a valid agreement, it is not proper for this court to exercise its discretion by nullifying the agreement. The parties ought to be bound by their agreement which, in my view, is valid. The agreement has internal remedies where the other party raises the complaint of breach.

The date of 7 April 2025 was only inserted by error. It is not strongly resisted that the 2nd Respondent expressed his offer on 6 May 2025. After expressing the offer on 6 May 2025, it is impossible that the same agreement could have been signed on 7 April 2025. This must be construed to be 7 May 2025 for all intents and purposes. After the signing of the agreement on 7 May 2025 by the 2nd Respondent, the Applicant was supposed to append his signature within seven days pursuant to the order in case number HCHF1149/25. Following the Applicant's failure to sign the agreement, the 1st Respondent signed the agreement on 21 May 2025 on the Applicant's behalf. All the surrounding circumstances suggest that the date of 7 April 2025 was a pure mistake by the 2nd Respondent. This error, in my view, cannot vitiate the agreement. Not all mistakes can vitiate the agreement. A mistake has to be reasonable, material and justifiable for it

[1] 1995 (1) ZLR 65 (S) at p 72E.

to see the vitiation of the contract. Reference is made to the case of *Ashanti Goldfields Zimbabwe Ltd* v *Jafati Mdala*[2], where the Supreme Court held that:

> "The requirements for this defense to succeed are stated in National and *Grindlays Bank Limited* v *Yelverton* 1972 (1) RLR 364 at 364H where it says:
> "…for the defense of *Justus error* to succeed he must prove that the error was reasonable and justifiable and on a material matter"

In my view, the mistake of the date of 7 April 2025 which was inserted by pen cannot be described as a material, justifiable or reasonable error which may see the vitiation of the contract given the surrounding circumstances of the entire transaction. Ms *Chinwawadzimba* motivated the court not to nullify the agreement on the basis of the error. In the premises, the agreement, in my view is a valid agreement which must be binding to the parties.

After reaching a conclusion that there is a valid agreement, it becomes obvious that the Applicant becomes bound by the provisions of the agreement. Having failed to sign the agreement within seven days as required by the order in case HCHF1149/25, the 1st Respondent signed the agreement on behalf of the Applicant. The Applicant is bound by such agreement. He cannot escape the consequences of the agreement. If the Applicant is of the view that a party to the agreement breached the terms of the agreement, he must proceed in terms of the agreement. The present application cannot be the appropriate relief for the Applicant.

In the circumstances, the present application is unmerited. It must, consequently, be dismissed with costs. Costs ordinarily follow the outcome. No submissions were advanced persuading me to have a departure from this principle. In the circumstances, it is ordered as follows:

[2] SC60/17.

The application be and is hereby dismissed with costs.

DEME J. …….....

Chimuka Mafunga Commercial Attorneys, Applicant's Legal Practitioners.
Makwanya Legal Practice, 2nd Respondent's Legal Practitioners.
Dhlakama B. Attorneys, 3rd Respondent's Legal Practitioners.